

**Superior Court of the State of California
County of Orange**

TENTATIVE RULINGS FOR DEPARTMENT C21

JUDGE CRAIG E. ARTHUR

Date: July 10, 2026

The court has set forth below its tentative rulings for the Law and Motion calendar on **July 10, 2026, at 10:00 a.m.** The court will not entertain any requests for a continuance now that the tentative rulings have been posted. In addition, no additional papers will be considered.

If all parties agree to submit on the Court's tentative rulings, please call the Court Clerk to inform the court that all parties submit on the Court's tentative ruling (657-622-5221). The tentative ruling will then become the order of the Court.

Unless otherwise indicated in the tentative ruling, the prevailing party will give Notice of Ruling. If no one appears for the hearing, the court shall determine whether the matter is taken off calendar or whether the tentative ruling shall become the final ruling.

APPEARANCES: The Court offers remote appearances for the Law and Motion Calendar via Zoom. All counsel and self-represented parties appearing remotely for the Law and Motion Calendar must check-in online through the Court's website at <https://www.occourts.org/civil-remote-hearings> , and then click on Department C21 (to check-in). The Court's "Civil Desktop Remote Appearance Video," an instructional video, is available through the Court's website at [Civil Desktop Remote Appearance Video](#), and the Court's "Civil Mobile Application Remote Appearance Video" is available through the Court's website at [Civil Mobile Application Remote Appearance Video](#). If you encounter difficulty checking-in online or connecting remotely, please call Department C21 for assistance at (657) 622-5221. Counsel and self-represented parties preferring to appear in-person may do so.

COURT REPORTERS: Official court reporters (i.e. court reporters employed by the Court) are NOT typically provided for law and motion matters in this department. Please see the Court's website for further information. The Court's policy on privately-retained court reporters is available on the Court's website at: [Privately-Retained Court Reporter Policy](#).

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and Orange County Superior Court rule 180.

#	Case Name	Tentative
50	<i>Benefit Street Partners Realty Operating Partnership, L.P. vs. Tauro Capital Advisors, Inc.</i>	The unopposed motion by Plaintiffs Benefit Street Partners Realty Operating Partnership, L.P. and BSP OF Finance, LLP (collectively, “Plaintiffs”) for an order admitting Howard W. Schub to appear as counsel Pro Hac Vice in this case and Plaintiffs’ unopposed motion for an order compelling defendants Mathhew Bucaro, D. Scott Lee, and Stephen Stein to appear for deposition and for an award of monetary sanctions, jointly and severally, against the defendants and their counsel of record in the amount of \$2,500 are CONTINUED. Plaintiffs served the notice of motion and moving papers in support of their motion for pro hac vice admission by mail on the State Bar of California, as well as uploaded electronically, and served by mail and electronic submission on all parties. Plaintiffs’ proof of service by mail did not state “the envelope was sealed and placed for collection and mailing on that date following ordinary business practices.” (Code Civ. Proc., § 1013a, subd. (3).) “In making service by mail there must be a strict compliance with sections 1012, 1013 and 1013a.” (Forslund v. Forslund (1964) 225 Cal.App.2d 476, 485.) In addition, Plaintiffs did not show electronic service on the self-represented litigants, Defendants D. Scott Lee and Stephen Stein, was proper. (Cal. Rules of Ct., Rule 2.251(c)(3)(B).) Plaintiffs did not show the self-represented defendants affirmatively consented to electronic service. Plaintiffs served the notice and moving papers in support of their motion to compel depositions by electronic service on all parties. (Proof of Service, ROA No. 488; Proof of Service, ROA No. 481.) Pursuant to CRC Rule 2.251(c)(3)(B), a self-represented litigant is “to be served by non-

		electronic methods unless [he] affirmatively consent[s] to electronic service.” Plaintiffs did not show Lee or Stein affirmatively consented to electronic service. The hearings on these two motions are continued to August 21, 2026 at 10:00 AM in Department C21. No later than July 20, 2026, Plaintiffs shall file a proof of service showing the notice and supporting papers for Plaintiffs’ motion for pro hac vice admission were properly served on the State Bar of California and all parties. No later than July 20, 2026, Plaintiffs shall file a proof of service showing the notice and supporting papers for Plaintiffs’ motion to compel depositions were properly served on all parties. No later than July 13, 2026, Plaintiffs shall give notice and file a proof of service showing notice of the continuance was properly served on all parties.
51	<i>Cleveland vs. The Grove Post-Acute</i>	Defendants The Grove Post-Acute’s and Cameron Dennings’s motion to compel arbitration of Plaintiff Mark Scott Cleveland’s claims is DENIED. Plaintiff’s request for judicial notice is GRANTED with the caveat that the Court recognizes that it is not obligated to rule the same as the Court did in the action, Cleveland v. The Grove Post-Acute, Case No. 30- 2025-01504442-CU-PO-CJC, as such is not binding precedent. Code of Civil Procedure section 1281.2 provides that the court shall grant a petition to compel

	arbitration upon the existence of an agreement to arbitrate, unless it determines that (1) the right to compel arbitration has been waived by the petitioner, (2) grounds exist for rescission of the agreement, or (3) there is a possibility of conflicting rulings due to third-party involvement. California Rules of Court, rule 3.1330, requires that a petition to compel arbitration or to stay proceedings pursuant to Code of Civil Procedure section 1281.2 must state, in addition to other required allegations, the provisions of the written agreement and the paragraph that provides for arbitration. The provisions must be stated verbatim or a copy must be attached to the petition and incorporated by reference. “[W]hen a petition to compel arbitration is filed and accompanied by prima facie evidence of a written agreement to arbitrate the controversy, the court itself must determine whether the agreement exists and, if any defense to its enforcement is raised, whether it is enforceable. Because the existence of the agreement is a statutory prerequisite to granting the petition, the petitioner bears the burden of proving its existence by a preponderance of the evidence.” (<i>Hotels Nevada v. L.A. Pacific Center, Inc.</i> (2006) 144 Cal.App.4th 754, 761, quoting <i>Rosenthal v. Great Western Fin. Securities Corp.</i> (1996) 14 Cal.4th 394, 413.) The enforceability of an arbitration agreement is determined pursuant to state contract law even where, as here, the agreements state that they are governed by the Federal Arbitration Act ("FAA"). (<i>Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC</i> (2012) 55 Cal.4th 223, 236 ["In California, '[g]eneral
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	principles of contract law determine whether the parties have entered a binding agreement to arbitrate."].) Notwithstanding California’s “strong public policy in favor of arbitration as an expeditious and cost-effective way of resolving disputes,” a party can only be compelled to arbitrate when he or she has agreed to do so. “Whether an agreement to arbitrate exists is a threshold issue of contract formation and state contract law.” (<i>Avila v. Southern California Specialty Care, Inc.</i> (2018) 20 Cal.App.5th 835, 843–844, internal citations omitted.) “[T]he consent of the parties to a contract must be communicated by each party to the other. [Citation.] ‘Mutual assent is determined under an objective standard applied to the outward manifestations or expressions of the parties, i.e., the reasonable meaning of their words and acts, and not their unexpressed intentions or understandings.’” (<i>Serafin v. Balco Properties Ltd., LLC</i> (2015) 235 Cal.App.4th 165, 173.) With the moving papers, Defendants attach the Arbitration Agreement, dated 11/1/24 as Ex. 5 to the declaration of Lizbeth Lopez. There are a few problems with Defendants’ evidence. Where Plaintiff is supposed to sign, his name appears to have been written in by Cheryl Maia. (See Ex. 5, pages 4, 5; see also Reply at 7:25-26, admitting that Maia had “pre-filled out forms.”) Then, Plaintiff signed the agreement where his agent (had someone been signing on his behalf) was supposed to have signed. Specifically, Plaintiff signed this as “Legal Representative/Agent of Resident and Individually.” This is nonsensical given that
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Plaintiff was not the legal representative or agent of himself.

In addition, Defendants reference the declaration of Cheryl Maia, Defendants' Admissions Coordinator, which purportedly authenticates and attaches the "Readmission Agreement" that Plaintiff executed pertaining to his July 2025 admission that is the subject of this lawsuit. Defendants state that Plaintiff signed a "Readmission Agreement" which stated: "The terms of the original Resident Admission Agreement and arbitration agreement have been reviewed and there is no significant change." (Motion at 3:23-25.)

Neither the declaration nor the Readmission Agreement has been submitted to the Court.

Plaintiff declares that he never understood he was signing an arbitration agreement, as no one explained what an arbitration agreement was, or what he was giving up in signing the agreement. (Cleveland Decl., ¶ 2.) He states he was "only quickly told where to sign the papers." (Cleveland Decl., ¶ 2.) In addition, he declares that when he was given the readmission agreement, he was not re-presented with the original agreement so he could review those terms. (Cleveland Decl., ¶ 3.)

Moreover, in the opposition brief, Plaintiff states that "Ms. Maia's own declaration acknowledges that Plaintiff 'did not want to write or sign his name' on the Readmission Agreement, and that his name was entered electronically." (Plaintiff's opposition at 3:17-22.)

Based on the foregoing, the Court finds that Defendants fail to meet their burden to show that

		Plaintiff knowingly agreed to arbitrate his claims arising from his July 2025 admission. The motion is DENIED. Plaintiff shall give notice.
52	<i>Dodson vs. Fisher</i>	Defendant Elliot Fisher's Motion for attorneys' fees in the amount of \$12,150 for prevailing on his Anti-SLAPP Motion directed to the first cause of action in Plaintiff Nicole Dodson's Complaint is GRANTED. Defendant is ordered to prepare an amended judgment adding attorney's fees in the amount of \$12,150 and costs in the amount of \$592.57 for the Court's signature. Defendant filed a timely Memorandum of Costs and no motion to strike or tax was filed. (See ROA 67.) <u>Merits</u> Code of Civil Procedure Section 425.16, subdivision (c) provides that "a prevailing defendant on a special motion to strike shall be entitled to recover his or her attorney's fees and costs." Under this provision, "any SLAPP defendant who brings a successful motion to strike is entitled to mandatory attorney fees." (<i>Ketchum v. Moses</i> (2001) 24 Cal.4th 1122, 1131.) On 2/19/26, the Court granted Defendant's Anti-SLAPP Motion. (ROA 62.) The Court then entered Judgment in Defendant's favor on the Complaint in this action on 2/27/26. (ROA 73.) To determine the appropriate fee award under the anti-SLAPP statute, the court applies the

	lodestar method. “The California Supreme Court has upheld the lodestar method for determining the appropriate amount of attorney fees for a prevailing defendant on an anti-SLAPP motion.” (<i>Mann v. Quality Old Time Service, Inc.</i> (2006) 139 Cal.App.4th 328, 342 [citing <i>Ketchum v. Moses, supra</i>, 24 Cal.4th at 1136].) Because Code of Civil Procedure section 425.16(c) is intended to compensate a defendant for the expense of responding to a SLAPP suit, the provision is broadly construed so as to effectuate the legislative purpose of reimbursing the prevailing defendant for expenses incurred in extracting herself from a baseless lawsuit. (<i>Wanland v. Law Offices of Mastagni, Holstedt & Chiurazzi</i> (2006) 141 Cal.App.4th 15, 22.) The court has broad authority to determine the amount of reasonable fees. (<i>PLCM Group, Inc. v. Drexler</i> (2000) 22 Cal.4th 1084, 1095.) A reasonable fee is determined in the trial court’s discretion. (<i>Id.</i> at p. 1096; <i>Barlin v. Barlin</i> (1957) 156 Cal.App.2d 143.) In making its determination, the court should consider a number of factors, including the nature of the litigation, its difficulty, the amount involved, the skill required in its handling, the skill employed, the attention given, the success or failure, and any other circumstances in the case. (<i>PLCM Group v. Drexler, supra</i>, 22 Cal.4th at p. 1096.) Courts begin with an independent review of the evidence to determine the reasonableness of the hours actually spent litigating the matter and to assess whether there was padding, over-staffing, duplication or marked inefficiency. (<i>Donahue v. Donahue</i> (2010) 182 Cal.App.4th 259, 272.) Other factors courts consider include the development of the case, the complexity of the issues, and how long the court estimates it should
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have taken to perform the services. (*Maughan v. Google Technology, Inc.* (2006) 143 Cal.App.4th 1242, 1249.) After the courts determine the number of hours reasonably necessary to the conduct of litigation, the next step is to determine an appropriate hourly rate for the work performed, based on market trends in the particular region for that kind of work. (*Center for Biological Diversity v. County of San Bernardino* (2010) 188 Cal.App.4th 603, 619; *Chacon v. Litke* (2010) 181 Cal.App.4th 1234, 1260.)

Opposition Arguments

The opposition is late, but Defendant filed a substantive reply without asking for a continuance and has not articulated prejudice. The Court therefore considers the opposition arguments.

While Plaintiff identifies the incorrect parties bringing this Motion, her argument is that she filed an appeal of the Order granting the Anti-SLAPP Motion therefore the Court lacks jurisdiction to hear this Motion.

Appealing an order on an anti-SLAPP motion does not divest the trial court of jurisdiction to consider plaintiff's motion for attorney fees and costs. "Even if the order granting the [special motion to strike] has been appealed, the trial court retains jurisdiction to entertain a motion for attorney fees." (*Doe v. Luster* (2006) 145 Cal.App.4th 139, 144.) Thus, the Court can hear this Motion.

Further, as Defendant points out, Plaintiff's Notice of Appeal only checks the box indicating that the Order sustaining the demurrer is being

appealed – not the Order granting the Anti-SLAPP Motion. (See ROA 115.)

Finally, a prevailing defendant's enforcement of a judgment awarding fees and costs under CCP § 425.16(c) is not automatically stayed by plaintiff's appeal. Rather, a SLAPP plaintiff must post an appropriate appeal bond or undertaking or petition for writ of supersedeas to stay enforcement. (*Dowling v. Zimmerman* (2001) 85 Cal.App.4th 1400, 1434.)

Thus, the Court moves to the merits of this Motion.

Reasonable Hourly Rate

The reasonable market value of the attorney's services is the measure of a reasonable hourly rate. This standard applies regardless of whether the attorneys claiming fees charge nothing for their services, charge at below-market or discounted rates, represented the client on a straight contingent fee basis, or are in house counsel. (*PLCM Group, Inc. v. Drexler, supra*, 22 Cal.4th at p. 1094.) To determine reasonable market value, the court must determine whether the requested rates are within the range of reasonable rates charged by and judicially awarded to comparable attorneys for comparable work. (*Children's Hospital & Medical Center v. Bonta* (2002) 97 Cal.App.4th 740, 783.) Some of the factors to be considered in determining whether counsel's rates are reasonable include: (1) the novelty and difficulty of the questions involved and the skill displayed in presenting them; (2) the extent to which the nature of the litigation precluded other employment by counsel; and (3) the contingent nature of the fee award. (*Serrano v. Priest* (1977) 20 Cal.3d 25, 49.)

Additional factors that may be considered include the level of skill necessary, time limitations, the amount to be obtained in the litigation, the attorney's reputation, and the undesirability of the case. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1139.)

The party requesting fees has the initial burden of producing evidence sufficient to support the reasonableness of the billing rates requested. (See *Davis v. City of San Diego* (2003) 106 Cal.App.4th 893, 903.)

Here, Defense Counsel Mark Armstrong billed his client Defendant Fisher \$500 per hour. (Armstrong Decl., ¶1.) This rate is reasonable for litigation of this type in Orange County.

Hours Reasonably Expended

In challenges to the reasonableness of the number of hours billed, "it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence." (*Premier Med. Mgmt. Sys., Inc. v. Cal. Ins. Guarantee Assn.* (2008) 163 Cal.App.4th 550, 564.) Actual time records need not be submitted so long as the court has sufficient and reliable information upon which to exercise its discretion. (*Raining Data Corp. v. Barrenechea* (2009) 174 Cal.App.4th 1363, 1375 [stating records not required and finding counsel declarations describing work and hours expended by category sufficient]; *Syers Properties III, Inc. v Rankin* (2014) 226 Cal.App.4th 691, 698-699.)

Here, Defense Counsel provides a detailed summary of his time spent. From the court's review of the hours and work done, they appear reasonable on their face. Plaintiff failed to

		challenge any specific item or make any other arguments relating to the billing. Accordingly, the court awards fees in the lodestar amount requested of 17.9 hours related to the Anti-SLAPP Motion and an additional 6.4 hours in connection with the instant Motion for Attorney’s Fees for a total of 24.3 hours = \$12,150. Defendant also requests a multiplier of 1.5 for his attorney’s fees. The party seeking a fee enhancement bears the burden of showing why an enhancement is appropriate. (<i>Ketchum v. Moses, supra</i>, 24 Cal.4th at p. 1138.) Defense Counsel argues that his normal rate is normally \$750 per hour and tells the Court that he agreed to charge less because of Defendant’s parenting issues. This case was not taken on contingency and the amount of hours permitted compensates for any discount in rates. Defendant Elliot Fisher’s Motion for attorneys’ fees in the amount of \$12,150 is GRANTED. Defendant is ordered to prepare an amended judgment adding attorney’s fees in the amount of \$12,150 and costs in the amount of \$592.57 for the Court’s signature.
53	<i>Shelby Fonda v. New Envy Skin Aesthetics Inc.</i>	Defendant New Envy Skin Aesthetics, Inc.’s (“Defendant”) Motion for Summary Judgment is DENIED. <u>Procedural Issues</u> Plaintiff Shelby Fonda’s (“Plaintiff”) objections, nos. 1 and 14, to the Groff, DO Declaration are sustained. (ROA 66.) Defendant’s objections, nos. 3, 4, 6, 7, and 11, to the Gharavi, MD Declaration,

are sustained. (ROA 74.) The remainder of the objections are overruled.

Plaintiff's objection to Defendant's separate statement is not well-taken. (Opp'n at p. 11.)

The Court disregards Plaintiff's citation to unreported authority (Opp'n at p. 7.) Future violations may result in the imposition of sanctions. (*People v. Williams* (2009) 176 Cal.App.4th 1521, 1529.)

Summary Judgment Standard

"[F]rom commencement to conclusion, the party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law." (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) A "party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact. . . ." (*Ibid.*) "A prima facie showing is one that is sufficient to support the position of the party in question." (*Id.* at p. 851.) A defendant moving for summary judgment satisfies his or her initial burden by showing that one or more elements of the cause of action cannot be established or that there is a complete defense to the cause of action. (Code Civ. Proc., § 437c, subd. (p)(2).)

Once a defendant meets its prima facie showing, the burden shifts to the plaintiff to show by reference to specific facts the existence of a triable issue as to that affirmative defense or cause of action. (*Aguilar v. Atlantic Richfield Co.*, *supra*, 25 Cal.4th at p. 850.) To meet this burden, the plaintiff must present substantial and admissible evidence creating a triable issue. (*Sangster v.*

Paetkau (1998) 68 Cal.App.4th 151, 163.) Theoretical, imaginative, or speculative submissions are insufficient to stave off summary judgment. (*Doe v. Salesian Society* (2008) 159 Cal.App.4th 474, 481; *Bushling v. Fremont Med. Center* (2004) 117 Cal.App.4th 493, 510.)

Medical Negligence

“The elements of a cause of action for medical malpractice are: (1) a duty to use such skill, prudence, and diligence as other members of the profession commonly possess and exercise; (2) a breach of the duty; (3) a proximate causal connection between the negligent conduct and the injury; and (4) resulting loss or damage.” (*San Antonio Regional Hospital v. Superior Court* (2024) 102 Cal.App.5th 346, 350, citing *Johnson v. Superior Court* (2006) 143 Cal.App.4th 297, 305.) “The first element, standard of care, is the key issue in a malpractice action and can only be proved by expert testimony, unless the circumstances are such that the required conduct is within the layperson’s common knowledge.” (*Ibid.*, citing *Lattimore v. Dickey* (2015) 239 Cal.App.4th 959, 968.) “Proving the third element, causation, also requires “ ‘competent expert testimony.’ ” (*Ibid.*, *Miranda v. Bomel Construction Co., Inc.* (2010) 187 Cal.App.4th 1326, 1336.)

“An expert declaration is admissible to support or defeat summary judgment if the expert’s testimony would be admissible at trial in accordance with Evidence Code section 720.” (*Bozzi v. Nordstrom, Inc.* (2010) 186 Cal.App.4th 755, 761.) Per Evidence Code section 720, “[a] person is qualified to testify as an expert if he has special knowledge, skill, experience, training, or education sufficient to qualify him as an expert

on the subject to which his testimony relates.” (Evid. Code, § 720, subd. (a).) The expert declaration must disclose the matters relied on in forming its opinion. (See *Kelley v. Trunk* (1998) 66 Cal.App.4th 519, 524.) The matter relied on must, itself, be properly authenticated and placed before the court. (*Garibay v. Hemmat* (2008) 161 Cal.App.4th 735, 743.)

Because “summary judgment presents a risk of infringing on the opponent’s rights—particularly the right to jury trial—we must strictly scrutinize the moving party’s proofs while liberally construing those of the opposing party. ‘All doubts as to whether any material, triable issues of fact exist are to be resolved in favor of the party opposing summary judgment.’” (*Cole v. Town of Los Gatos* (2012) 205 Cal.App.4th 749, 757, citing *Barber v. Marina Sailing, Inc.* (1995) 36 Cal.App.4th 558, 562.)

Here, both sides failed to properly authenticate and place the matters relied on by their experts before the Court. Defendant’s expert, Dr. Groff, attests that he relied on a number of documents, including, but not limited to: “Plaintiffs production of documents and photographs”; “Advanced Dermatology and Skin Care Specialists medical and billing records”; “Neighborhood Healthcare medical records”; and, “Coastal Medical Group medical record.” (ROA [Dr. Groff Decl. at ¶ 8].) Because these materials were not properly before the Court, the motion for summary judgment is DENIED.

It should be noted that Plaintiff’s expert, Dr. Gharavi, also appears to have relied on materials, which are not before the Court, in forming her opinion. However, the burden does not shift to

		Plaintiff unless Defendant first meets its initial burden. Further, although Dr. Gharavi’s declaration is not a model of clarity, in liberally construing the declaration, it can be reasonably understood that she is attesting that Hyekyong U. did not receive sufficient training to use the “PiQo4” laser device for removal of body tattoos; and, that this opinion is derived from Hyekyong U’s deposition testimony that she received six hours of training from Dr. Hy before she was hired. Lastly, the Court points out that Dr. Groff opines, “[a]s a licensed registered nurse, Ms. U was qualified to perform the procedure under the supervision of New Envy Aesthetics, Inc.’s Medical Director.” (Dr. Groff Decl. at ¶ 9, emphasis added.) However, Hyekyong U. testified during her deposition that she did not remember whether Dr. Hy was at the facility when she was performing the procedure on Plaintiff. (ROA 68 [Hyekong U Depo. Tr. 79:3-7].) In her supporting declaration, Hyekyong U states: “I am supervised in the performance of laser tattoo removal procedures by New Envy Skin Aesthetics, Inc. 's Medical Director, Dr. Adam Hy.” (RO 35 [Hyekyong U Decl. at ¶ 4].) But, in strictly construing the moving party’s evidence, this testimony is not sufficient to establish that Dr. Hy actually supervised the subject procedure. Plaintiff shall give notice of the ruling.
54	<i>Gulley vs. James Rivers Insurance Company</i>	Plaintiff has filed three motions to compel and is asking for sanctions related to the requested relief. The court’s ruling as to each motion is set forth below.

1. Plaintiff's Motion to Compel Further Response to Requests for Admission, Set One from Defendant

Legal Standard

Where responses have been timely served but are deemed deficient by the requesting party (e.g., because of objections or evasive responses), that party may move for an order compelling a further response. (CCP § 2033.290; see *Wimberly v. Derby Cycle Corp.* (1997) 56 Cal.App.4th 618, 636—requesting party not entitled to shifting of costs and expenses of proof for responding party's objections to RFA because requesting party made no motion to compel further response.)

No further response can be ordered to an RFA that has been unqualifiedly denied, even if the facts involved are unquestionably true. “[A] court [cannot] force a litigant to admit any particular fact if he is willing to risk a perjury prosecution or financial sanctions” by denying them. (*Holguin v. Sup.Ct. (Hoage)* (1972) 22 Cal.App.3d 812, 820.)

Prior to filing such a motion, the moving party must meet and confer with the responding party in a reasonable and good faith attempt to informally resolve each issue that would be presented by the motion. (Code Civ. Proc., §§ 2033.290, subd. (b), 2016.040.)

The response to each RFA must contain either an answer or an objection to the particular RFA. (CCP § 2033.210(b).)

Each answer “shall be as complete and straightforward as the information reasonably available to the responding party permits.” (CCP § 2033.220(a).)

Thus, absent an objection, the response must contain one of the following:

- An admission;
- A denial;
- A statement claiming inability to admit or deny.

(CCP § 2033.220(b).)

If any portion of the RFA is true, the party to whom it is directed must admit that portion: “Each answer shall ... [a]dmit so much of the matter involved in the request as is true, either as expressed in the request itself or as reasonably and clearly qualified by the responding party.” (CCP § 2033.220(b)(1).)

The answer must be “as complete and straightforward” as the information available *reasonably permits* and must “[a]dmit so much of the matter involved in the request as is true ... or *as reasonably and clearly qualified* by the responding party.” (CCP § 2033.220(a), (b)(1) (emphasis added).)

For example: an RFA asked plaintiff to “Admit you attended a meeting with [Party Y] on or about January 13, 2006.” She responded: “Admit. [Party X] was also present.” Plaintiff’s response “admitted the statement and was not improper.” (*St. Mary v. Sup.Ct. (Schellenberg)* (2014) 223 CA4th 762, 781.)

Merits

As an initial matter, Defendant argues that the meet and confer effort was insufficient. Although Plaintiff wrote a letter addressing the inadequacy of the responses, Defendant says that Plaintiff was busy with trial and never reached out when

it ended to schedule a telephone conversation.

The documents show that Defendant never substantively responded to the meet and confer letter. Further, the last email was from Plaintiff's Counsel offering a date to meet and confer. Defense Counsel does not appear to have responded to that offer.

The Court finds Plaintiff's effort to meet and confer sufficient based on the testimony and documents provided.

At issue in this Motion is RFA Nos. 1-20.

As to the merits, Defendant has not met its burden to justify any of the objections.

Further, the Court finds the responses not Code-compliant. The responses have significant qualifying statements, and the response of "admit, otherwise deny" is ambiguous. It is not clear exactly what is being admitted or denied.

Thus, the Court grants the Motion as to RFA Nos. 1-20 and orders Defendant to provide verified, Code-compliant amended responses without objections within 30 days of notice of this Order.

2. Plaintiff's Motion to Compel Further Responses to Form Interrogatories, Set Two, from Defendant

Legal Standard

A party may move to compel further responses to interrogatories on the grounds that the answer is evasive or incomplete, an exercise of the option to produce documents under Code of Civil Procedure section 2030.230 is unwarranted or the required

	specification of those documents is inadequate, and/or an objection to an interrogatory is without merit or too general. (Code Civ. Proc., § 2030.300, subd. (a).) With respect to interrogatories, the burden of showing good cause does not exist. (<i>Coy v. Superior Court</i> (1962) 58 Cal.2d 210, 220-221.) If a timely motion to compel has been filed, the burden is on the responding party to justify any objection or failure to fully answer the interrogatories. (<i>Fairmont Ins. Co. v. Superior Court</i> (2000) 22 Cal.4th 245, 255; <i>Williams v. Superior Court</i> (2017) 3 Cal.5th 531, 541 [“While the party propounding interrogatories may have the burden of filing a motion to compel if it finds the answers it receives unsatisfactory, the burden of justifying any objection and failure to respond remains at all times with the party resisting an interrogatory.”].) Prior to filing such a motion, the moving party must meet and confer with the responding party in a reasonable and good faith attempt to informally resolve each issue that would be presented by the motion. (Code Civ. Proc., §§ 2030.300, subd. (b), 2016.040.) Such response may must state one of the following: • An answer; • An objection; or • An election to allow inspection and copying of records. (CCP § 2030.210(a).)
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Each answer in the response must be “as complete and straightforward as the information reasonably available to the responding party permits. If an interrogatory cannot be answered completely, it shall be answered to the extent possible.” (CCP § 2030.220(a), (b).)

“Parties must state the truth, the whole truth, and nothing but the truth in answering written interrogatories.” (*Scheiding v. Dinwiddie Const. Co.* (1999) 69 Cal.App.4th 64, 76 (internal quotes omitted); see CCP § 2023.010(f)—evasive response is ground for sanctions.)

Where the question is specific and explicit, an answer that supplies only a portion of the information sought is improper. It is also improper to provide “deftly worded conclusionary answers designed to evade a series of explicit questions.” (*Deyo v. Kilbourne* (1978) 84 Cal.App.3d 771, 783.)

Merits

As to Form Interrogatories, this Motion is directed to Nos. 13.1, 13.2, 15.1 and 17.1. Plaintiff never marked Form Interrogatory 15.1 and thus this is not at issue.

Defendant has not met its burden to justify any of its objections.

No. 13.1 and 13.2 ask questions about surveillance of Plaintiff for the underlying accident. The response says “see the claims file” basically. This is not sufficient.

Similarly, the response to No. 17.1 is also insufficient. It lumps together all the RFAs and is not responsive to each subcategory.

Thus, the Court grants the Motion as to Form Interrogatory Nos. 13.1, 13.2, 15.1 and 17.1, and orders Defendant to provide verified, Code-compliant amended responses without objections within 30 days of notice of this Order. Defendant is ordered to separate out each RFA denial under No. 17.1. and answer each subpart separately.

3. Plaintiff's Motion to Compel Further Responses to Special Interrogatories, Set Two from Defendant

Legal Standard

See above.

Merits

At issue here are Supplemental Responses to Special Interrogatory Nos. 6-23.

Defendant has not met its burden to justify any objections.

As to the merits, the responses are nonresponsive and not Code-compliant.

Interrogatories ask for dates, names of persons (for specific reasons), and facts.

In response, Defendant does not directly answer any of the interrogatories or answers a different question. The responses are not Code-compliant or responsive. Most of the responses refer Plaintiff back to the Claims File. This is improper.

Defendant also fails to properly exercise its option to respond with documents.

	If the interrogatory seeks information contained in files and records, the responding party is under a duty to provide “complete and straightforward” answers. (CCP § 2030.220(a).) However, if the answer would necessitate making a <i>compilation</i> or summary of information contained in such records, the responding party has the <i>option</i> to allow the interrogating party to inspect and copy the records in question. In effect, the responding party <i>may</i> shift the burden of compiling the information to the interrogating party. (CCP § 2030.230.) Exercising the option is equivalent to a statement <i>under oath</i> that the records identified actually exist and that they contain the information necessary to provide a “complete and straightforward” answer to the interrogatory. (See <i>Deyo v. Kilbourne</i> (1978) 84 CA3d 771, 784.) Requirements: To answer an interrogatory in this manner, the following must be shown: • A <i>compilation, abstract, audit or summary</i> of the responding party's records is necessary in order to answer the interrogatory; <i>and</i> • No such compilation, etc. presently exists; <i>and</i> • The burden or expense of preparing or making it would be substantially the same for the interrogating party as for the responding party. [CCP § 2030.230] How option exercised: To utilize this option, the response must: • Be <i>timely</i> (delay waives the right to exercise the option; see CCP § 2030.290(a); and
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		• <i>Refer to CCP § 2030.230;</i> and • <i>Specify the documents from which the answer may be derived or ascertained.</i> (CCP § 2030.230.) Thus, the Court grants the Motion as to Special Interrogatories Nos. 6-23, and orders Defendant to provide verified, Code-compliant amended responses without objections or reference to the Claims File within 30 days of notice of this Order. <u>Sanctions</u> Plaintiff is awarded total sanctions of \$4,480 total for all 3 Motions including costs against Defendant. Within 30 days of the notice of ruling, Defendant shall pay \$4,480 to the Law Offices of Steven R. Young. Plaintiff is ordered to serve notice of this Order.
55	<i>Lopez vs. BNSF Railway Company</i>	Plaintiff Javier Lopez’s motion to tax Defendant BNSF Railway Company’s costs is granted in part and denied in part. The right to recover costs of suit is determined entirely by statute. (Code Civ. Proc., § 1032 et seq.) Unless otherwise expressly prohibited by statute, a prevailing party is entitled to recover costs as a matter of right. (Code Civ. Proc., § 1032, subd. (b).) Code of Civil Procedure section 1033.5, subdivision (a) specifies cost items that are allowable, including filing and motion fees, deposition costs, and court reporter fees. (Code Civ. Proc., § 1033.5, subd. (a)(3).) Allowable costs “shall be reasonably necessary to the conduct of the litigation rather than merely convenient or

beneficial to its preparation” and “reasonable in amount.” (Code Civ. Proc., § 1033.5, subd. (c).)

If the items on their face appear to be proper charges, the verified memorandum of costs is prima facie evidence of their propriety, and the burden is on the party seeking to tax costs to show they were not reasonable or necessary. (*Ladas v. California State Auto. Assn.* (1993) 19 Cal.App.4th 761,774-776; *Jones v. Dumrichob* (1998) 63 Cal.App.4th 1258, 1266 [mere statements in points and authorities and declaration of counsel insufficient to rebut prima facie showing]; see *Wagner Farms, Inc. v. Modesto Irrigation Dist.* (2006) 145 Cal.App.4th 765, 777-778 [prevailing defendant properly awarded its photocopying costs which were supported by invoice from copy company, when plaintiffs failed to present any evidence showing that copying could have been done for less]. On the other hand, items that are properly objected to are put in issue, and the burden of proof is on the party claiming them as costs. (*Ladas v. California State Auto. Assn.*, *supra*, 19 Cal.App.4th at pp. 774-776.)

Deposition costs

Defendant claims a significant number of trial transcript costs in this category. In opposition, Defendant concedes that \$9,308.89 of these costs were erroneously included. The Court disagrees with Defendant’s calculation, as the amounts listed in Defendant’s Ex. D-1 add up to **\$25,929.39**. It therefore taxes this amount. To be clear, under this category, the *allowable amount* is **\$27,544.29** (\$53,473.68 minus the taxed amount of \$25,929.39).

Expert witness fees

Plaintiff argues that expert fees are not recoverable in an FELA (Federal Employer's Liability Act) case such as this, citing to *Kinsey v. Union Pacific R.R. Co.* (2009) 178 Cal.App.4th 201, 207.

The facts in this matter are distinguishable as in *Kinsey*, where the defendant obtained a judgment in its favor. Here, the judgment was in Plaintiff's favor, albeit less than Defendant's Code Civ. Proc., § 998 settlement offer.

Pursuant to Rule 68 of the Federal Rules of Civil Procedure and *Kinsey*, Defendant's post-offer expert costs are recoverable. (See *Kinsey, supra*, 178 Cal.App.4th at 207 ("the effect of rule 68 is to allow a defendant to recover postoffer costs only when a plaintiff/offeree obtains an award that is less than the offer of judgment, and *not* when the plaintiff/offeree loses the suit in its entirety.").)

In reviewing the invoices submitted by Defendant, the Court notes that not all of Defendant's experts' costs claimed were for work exclusively performed after Defendant's 6/3/25 offer. (Arshansky Decl., ¶9, Ex. G.)

The first invoice for J.S. Held LLC (William Neale) references a Bill Through Date of 5/30/25 indicating that the work took place prior to June of 2025, before the offer. Similarly, the next invoice from Exponent (Elizabeth Rapp Van Roden) also indicates it is for professional services through May 30, 2025. Douglas Brown's invoice also indicates that the majority of his work (reviewing images and records) was performed in March and April of 2025.

Accordingly, the Court disallows **\$5,899.76**.

The Court does find, on the other hand, that even though Defense expert Mark J. Spoonamore, M.D. (orthopedics) did not testify at trial, Defendant has shown his retention was reasonable and necessary to the litigation. (*Bates v. Presbyterian Intercommunity Hospital, Inc.* (2012) 204 Cal.App.4th 210, 222 quoting *Santantonio v. Westinghouse Broadcasting Co.* (1994) 25 Cal.App.4th 102, 124.)

In addition, Spoonamore's invoices attached reflect that his work, for which Defendant claims reimbursement, occurred post-offer in July and December of 2025 and January of 2026.

Other costs

As part of this category Defendant claims costs for meals, hotel rooms for trial, parking and other travel expenses.

Cost items "not specifically allowable under subdivision (a) nor prohibited under subdivision (b) may nevertheless be recoverable in the discretion of the court if 'reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation.'" (*Ladas v. California State Auto. Assn.* (1993) 19 Cal.App.4th 761, 774 [citing Code Civ. Proc. § 1033.5, subd. (c)(2)].)

The Court does not find that any of Defendant's costs for meals were reasonable and necessary to the litigation and therefore taxes **\$3,226.63**. (See *Ladas v. California State Auto. Assn.* (1993) 19

Cal.App.4th 761, 774-775.)

The hotel costs on the other hand, do appear reasonable and necessary to the litigation; the Court allows these costs considering the alternative of commuting to and from Los Angeles every day during rush hour.

The Court reduces the costs by **\$101.44** for the jury fees Defendant admits were discounted as well as by **\$14.38** for the David Welde cost entry, which Defendant concedes. (Arshansky Decl., ¶¶ 25-26.)

Finally, the Court disallows Defendant's claimed costs for its paralegal/trial technician in the amount of **\$17,173.20**. (Arshansky Decl., Ex. I.) The vast majority of these invoices are redacted without explanation. Examples of what the non-redacted entries state are, "Attend trial day 1," amend and supplement trial exhibits," "prepare electronic exhibits as requested by court," and "attend trial and provide trial support." These entries are more akin to general paralegal fees which Defendant would be able to recoup if it were entitled to its attorney fees. There is no indication that Ms. Young exhibited such special skills that would be unique to a trial technician as opposed to just a paralegal who was tech savvy. Also, given the redactions, the Court cannot determine whether such would be "reasonable and necessary" to the litigation.

Based on the foregoing, the Court taxes a total of **\$52,344.80** in costs and awards Defendant **\$271.663.99**.

Defendant shall give notice of the ruling.

56	<i>Plane Fetch LLC vs. Ignite Enterprises, LLC</i>	<i>All three motions are off calendar.</i>
57	<i>Sanchez v. Ford Motor Company</i>	The motions of defendant Ford Motor Company and AutoNation Ford Tustin for summary adjudication and summary judgment on Plaintiff's fifth cause of action [ROA # 87] is continued to 08/07/2026 for Defendants to file their reply papers in the time provided by Code of Civil Procedure section 437c(b)(4). Code of Civil Procedure section 437c provides that a motion for summary judgment or adjudication must be served 81 days before the hearing. Code Civ. Proc. §437c(a)(2). That gives the responding party a lot of notice. The opposing papers are to be filed and served 20 days before the hearing. Code Civ. Proc. §437c(b)(2). Any reply is then due 11 days before the hearing – giving the moving party only nine days to respond to the opposition. Code Civ. Proc. §437c(b)(4). Given the current hearing date, Plaintiff's opposition was due on 06/18/26 and Defendants' reply on 06/29/26. Plaintiff filed and served his opposition on 06/29/26 – the very day Defendants' reply would be due. This is not a “de minimis” delay. [See Yu Decl. (ROA #120), ¶ 4.] Accordingly, the hearing is continued to give Defendants time to file their reply papers. See <i>Levingston v. Kaiser Foundation Health Plan, Inc.</i> (2018) 26 Cal.App.5th 309, 319.

